

COMPLETE LEARNING SESSION

Anti-Corruption Institutions - Complete Topic Package

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Anti-Corruption Institutions

TEN-SESSION CORE PATH • PRACTICE • OPTIONAL ADVANCED • REGISTER NOTES

- | | |
|---|--|
| 1 Institutional map: why India uses multiple anti-corruption bodies | 2 CVC, CBI, Lokpal and Lokayukta: precise roles and boundaries |
| 3 Jurisdiction and coordination: from authorised complaint to competent forum | 4 Institutional evolution: Santhanam, Vineet Narain, ARC and the enacted Lokpal |
| 5 Prelims-ready design facts without role inflation | 6 Close-option traps: advice, inquiry, investigation, prosecution and adjudication |
| 7 PYQ application: accountability, probity, federalism and institutional reform | 8 Mains analysis: independence, coherence, legitimacy and due process |
| 9 Probable questions and institution-specific answer routes | 10 Study boundaries, reform synthesis and examiner-ready architecture |

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Anti-Corruption Institutions - Complete Topic Package

Subject: Ethics **Section:** Subject-wide Syllabus **Generation:** learner-v2:g1 **Ownership:** GS-IV Ethics topic; recent official-paper questions retain their exact year, paper and source note. **Source policy:** complete Basic owner first; solved practice before optional Advanced depth; consolidated register notes last.

CURRENT-AFFAIRS ANCHOR

Current official anchor: complaint-process transparency at Lokpal

- **FACT:** Fact: Lokpal Circular No. 01/2026 dated 24 July 2026 expressly sets procedure for complaints, listing of matters, uploading of orders and jurisdiction under Section 14.
- **FACT:** Fact: Official Financial Year 2025-26 administrative data report: complaints received 558 (154 post/hand and 404 online); complaints registered 431; registered complaints disposed 407; preliminary inquiries 81; investigations 8; prosecution sanctions 0; disciplinary directions 2; pending 99.

ANALYSIS: Inference / administrative link: Complaint handling, cause-list visibility, publication of orders and consolidated reporting can improve procedural traceability and public accountability. The labelled counts make different administrative stages visible, but they do not collapse jurisdiction screening, preliminary inquiry, investigation, prosecution and judicial adjudication into one function. A complaint, listing, uploaded order or administrative count is not proof of guilt.

ANALYSIS: Limit: These are official FY 2025-26 administrative categories, not a measure of corruption prevalence or institutional success. They must not be treated as a single complaint cohort, converted into stage-to-stage rates without the report's definitions, or used alone to infer disposal quality, investigation quality, deterrence, conviction performance or effectiveness.

Official source links:

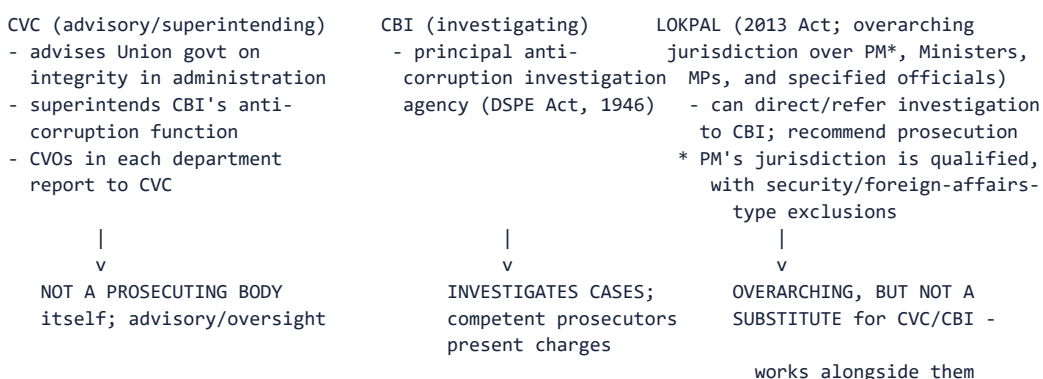
- https://lokpal.gov.in/api/cms-file?path=%2Fuploads%2Fcms%2F6%2F129%2F1_Circular_No._01.2026.pdf
- https://lokpal.gov.in/assets/pdf/consolidated_2025-26.pdf

Source caution: Topic 20 owns the ethics and jurisdiction architecture of CVC, CBI, Lokpal, State Lokayuktas, departmental CVOs and State Anti-Corruption Bureaus. The CVC is an advisory and superintending vigilance body within its statutory remit; CVC advice is not a criminal conviction, and the Commission is not a criminal court and its superintendence does not extend to every CBI subject. The CBI was created by executive resolution, while its police powers derive from the Delhi Special Police Establishment Act, 1946. State consent is the ordinary gate for exercising DSPE powers within a State, but withdrawal of general consent does not disable constitutional courts; Supreme Court Article 32 and High Court Article 226 directions are the constitutional-court caveat, not a general executive bypass. The ARC's 2007 three-member Lok Pal proposal must remain separate from the broader Lokpal enacted in 2013. The enacted Prime Minister jurisdiction is qualified by subject exclusions, full-bench consideration, a two-thirds threshold and confidentiality. State Lokayuktas are heterogeneous because the central law did not prescribe a uniform model; exact State Lokayukta and ACB powers require the relevant State law. Departmental CVOs perform preventive, complaint-examination and disciplinary-routing functions; they do not adjudicate criminal guilt. Inquiry, investigation, prosecution, departmental decision and judicial adjudication must be written as distinct stages. Topic 19 owns detailed corruption offences, ingredients, sanction and allied criminal law. Topic 18 owns detailed public-fund, procurement, audit and leakage controls. Topic 21 owns safeguards for honest officials, vigilance screening and anti-retaliation design. Topic 22 owns complete case-study method. Official local UPSC PDFs control PYQ wording; condensed case entries are neutral routing and do not pretend to reproduce every printed fact. The official India Code PDFs of the DSPE Act, 1946 and the Lokpal and Lokayuktas Act, 2013 control statutory wording; institutional portal summaries cannot enlarge those enactments. The State-consent constitutional-court caveat follows the Constitution Bench judgment in *State of West Bengal v. Committee for Protection of Democratic Rights*, available through the Supreme Court's official judgment PDF; it is not a general Union-executive exception.

SESSION 1 - Institutional map: why India uses multiple anti-corruption bodies

Subject: Ethics | **Tier:** Must-Do (foundation) | **GS Paper:** GS-IV (with GS-II overlap). **Core area:** The ethics-specific angle on India's anti-corruption institutions - CVC, CBI, Lokpal/Lokayukta - their jurisdiction debates and institutional-design rationale. **Grounded in:** 2nd ARC 4th Report *Ethics in Governance* (2007), Ch.4 Institutional Framework (paras 4.1-4.3); Central Vigilance Commission Act, 2003; Lokpal and Lokayuktas Act, 2013; audited GS-IV PYQs. **FACT:** = source-grounded | **ANALYSIS:** = analytical inference | **CURRENT:** = current anchor. *Companion:* advanced/20_Anti-Corruption-Institutions.md.

1. Visual foundation



Core proposition: FACT: ARC 4.2.5 - India's anti-corruption institutions have historically suffered from "a multiplicity... with overlapping functions" that "undermined their coherence," lacking "unified focus" - the ARC's own diagnosis for why a stronger, overarching institution (which became the Lokpal) was needed.

SESSION 2 - CVC, CBI, Lokpal and Lokayukta: precise roles and boundaries

2. Essential definitions

Concept	Exam-ready meaning
FACT: CVC (Central Vigilance Commission)	Set up in 1964 following the Santhanam Committee recommendation; given statutory status by the CVC Act, 2003 in the post- <i>Vineet Narain</i> reform context. It advises on Union vigilance administration and exercises specified superintendence over DSPE investigation of PC Act offences and connected trial offences; it does not command every CBI investigation or determine guilt.
FACT: CBI (Central Bureau of Investigation)	Created by executive resolution in 1963; its police powers derive from the Delhi Special Police Establishment Act, 1946. The Anti-Corruption Division investigates within lawful subject and territorial jurisdiction; prosecutors and courts perform later, distinct functions.
FACT: Lok Pal/Lokayukta (ARC's 2007 conception)	ARC 4.3.1-4.3.4 recommended a three-member Lok Pal (a serving/retired Supreme Court judge as Chairman, an eminent jurist, and the CVC ex-officio) to enquire into corruption allegations against Ministers and MPs, working in organic linkage with the CVC.
CURRENT: Lokpal (as actually enacted, 2013)	The Lokpal and Lokayuktas Act, 2013 established a differently structured body - a Chairperson and not more than eight Members , of whom at least 50% must be judicial members and at least 50% must be from among SC/ST/OBC, minorities and women - with jurisdiction over the Prime Minister (subject to exclusions), Ministers, MPs, central government officials of all groups, and specified societies/trusts receiving public or foreign funding: distinct in composition from the ARC's own 2007 three-member proposal.

SESSION 3 - Jurisdiction and coordination: from authorised complaint to competent forum

3. Mechanism: how the institutional-jurisdiction debate works

- 1. Multiplicity problem:** FACT: ARC 4.2.5 identifies CVC, departmental vigilance units and CBI at the Union level, and a mix of Lokayuktas, State Vigilance Commissions and Anti-Corruption Bureaus at the state level, as suffering from overlapping, uncoordinated jurisdiction.
- 2. The Prime Minister's-office jurisdiction debate (ARC 4.3.5-4.3.10):** FACT: ARC itself lays out both sides - proponents argue no functionary should be exempt from scrutiny in a democracy; opponents argue that formal Lok Pal enquiry into a sitting Prime Minister would paralyse government by eroding the PM's Parliamentary-confidence-based authority, an institutional argument distinct from a claim of special privilege.
- 3. FACT:** ARC's own resolution: Parliament (via a no-confidence motion) - not a Lok Pal enquiry - should remain the check on a sitting Prime Minister's conduct, while Ministers and MPs (whose removal does not itself destabilise the government's survival in the same way) could properly fall under Lok Pal jurisdiction.
- 4. Linkage design:** FACT: ARC 4.3.3 recommends an "organic link" between the Lok Pal and CVC so that cases involving collusion between Ministers/officials are handled coherently, with the CVC working "under the overall guidance and superintendence of the Lok Pal" while retaining its own functional autonomy.
- 5. CBI's federal gate:** FACT: Under the DSPE Act, ordinary exercise of DSPE police powers within a State requires State consent, which may be general or case-specific. Withdrawal of general consent changes the route for fresh cases but does not disable the Supreme Court under Article 32 or High Courts under Article 226 from

directing a CBI investigation in an appropriate case; that constitutional power is exceptional, not a general Union-executive bypass.

6. **These institutions are the "authorised channel" step of the whistleblowing/ethical-dissent ladder (**full ladder developed in 19, applied to honest-official protection in 21**): **a central-government/PSU employee's corruption complaint is routed first to the CVC under the Public Interest Disclosure and Protection of Informer (PIDPI) Resolution, 2004**** (identity kept confidential, no acknowledgment issued, to avoid retaliation); matters within the Lokpal's statutory jurisdiction (Ministers, MPs, specified officials/societies) go to the Lokpal, which can direct or refer investigation to the CBI. ANALYSIS: Both are internal/institutional channels - the ladder's later, external-disclosure step is a last resort, not a substitute for using these first.

SESSION 4 - Institutional evolution: Santhanam, Vineet Narain, ARC and the enacted Lokpal

4. Indian applications and examples

- FACT: The CVC Act, 2003 was a direct legislative response to the Supreme Court's *Vineet Narain* judgment (1997), which had found the CBI's investigative independence compromised by executive control - giving the CVC statutory superintendence over CBI's anti-corruption functions.
- CURRENT: The Lokpal and Lokayuktas Act, 2013 received assent on 1 January 2014 and came into force on **16 January 2014**, but the first Lokpal Chairperson (Justice Pinaki Chandra Ghose) was appointed only on **19 March 2019**, assuming office on 23 March 2019 - a five-year gap between commencement and operation. Verify current officeholders from the official Lokpal portal on the day of use.
- ANALYSIS: A case involving both a Minister and a senior bureaucrat accused of collusive favouritism in a licensing decision exemplifies exactly the "organic link" scenario the ARC's 4.3.3 recommendation anticipated.

SESSION 5 - Prelims-ready design facts without role inflation

5. Must-Know Facts for Prelims

- FACT: The CVC was set up by executive resolution in **1964** following the Santhanam Committee's recommendation; it received statutory status via the CVC Act, 2003 (assent 11 September 2003), after the Supreme Court's *Vineet Narain v. Union of India*, (1998) 1 SCC 226, decided 18 December 1997.
- FACT: ARC's own 2007 Lok Pal proposal envisaged a three-member body (judicial Chairman, an eminent jurist, and the CVC ex-officio) - distinct from the Lokpal and Lokayuktas Act, 2013's actual, larger and differently composed structure (Chairperson plus not more than eight Members).
- FACT: ARC explicitly recommended the Prime Minister remain accountable to Parliament rather than to a formal Lok Pal enquiry, while Ministers and MPs should fall under Lok Pal jurisdiction. ANALYSIS: The enacted 2013 Act took a different route - inclusion of the PM with subject-matter exclusions and a higher procedural threshold (see the advanced companion).
- FACT: State consent is the ordinary DSPE Act gate for CBI police powers within a State. It is not an absolute constitutional veto: the Supreme Court and High Courts may direct a CBI investigation under Articles 32 and 226 respectively, using that power cautiously.

SESSION 6 - Close-option traps: advice, inquiry, investigation, prosecution and adjudication

6. UPSC traps

- WRONG: The CVC has direct powers to prosecute corruption cases. -> The CVC is an advisory/superintending body; actual investigation and prosecution remain with the CBI/state agencies, subject to sanction.
- WRONG: The 2013 Lokpal and Lokayuktas Act implemented the ARC's 2007 Lok Pal proposal exactly as recommended. -> The enacted Lokpal differs materially in composition and structure from the ARC's own three-member proposal - treat the two as related but distinct historical developments.
- WRONG: The ARC recommended that the Prime Minister be entirely exempt from any anti-corruption scrutiny. -> The ARC recommended Parliamentary accountability (no-confidence motion), not exemption from scrutiny altogether - a nuanced institutional-design argument, not a special-privilege claim.
- WRONG: A whistleblower can approach the CVC/Lokpal anonymously and still receive full protection. -> PIDPI explicitly excludes anonymous/pseudonymous complaints from consideration; the complainant's identity must be known to the CVC (and kept confidential from others) for the mechanism to operate - anonymity and confidentiality are not the same safeguard.
- WRONG: Withdrawal of general State consent makes every CBI investigation constitutionally impossible. -> Fresh executive-led investigations must respect the DSPE consent structure, but constitutional courts retain their exceptional Articles 32/226 power to direct a CBI investigation.

SESSION 7 - PYQ application: accountability, probity, federalism and institutional reform

7. PYQ application

- ANALYSIS: Any question on "strengthening anti-corruption institutions" or "reducing institutional overlap" should cite the ARC's own multiplicity diagnosis (4.2.5) and its organic-linkage recommendation (4.3.3) by name.
- ANALYSIS: Questions on "accountability of high constitutional functionaries" can draw on the ARC's own Prime-Minister-jurisdiction debate (4.3.5-4.3.10) as a genuine, two-sided institutional argument.
- ANALYSIS: Case studies involving an official weighing whether/how to report suspected wrongdoing should route through the CVC (PIDPI)/Lokpal institutional channels named here as the "authorised channel" step of the whistleblowing ladder (19, 21), before any external-disclosure step.

SESSION 8 - Mains analysis: independence, coherence, legitimacy and due process

8. Mains angles

- ANALYSIS: When recommending institutional reform, explicitly distinguish the ARC's 2007 *proposal* from the 2013 *enacted Lokpal* to demonstrate awareness that recommendations and enacted law are distinct historical facts, not identical.
- ANALYSIS: Use the "organic link" concept (CVC operating under Lokpal's "overall guidance" while retaining functional autonomy) as a model for any institutional-coordination recommendation.

Answer thesis: India's anti-corruption institutional architecture historically suffered from jurisdictional multiplicity and lack of coordination. A defensible response combines precise roles, lawful federal and subject-matter gates, secure hand-offs and independent adjudication. The ARC's 2007 Lok Pal proposal remains a useful design reference, but it must be distinguished from the broader and differently composed institution enacted in 2013.

SESSION 9 - Probable questions and institution-specific answer routes

9. Probable questions

- ANALYSIS: **Prelims**: Which Supreme Court judgment led to the Central Vigilance Commission's statutory status under the CVC Act, 2003?
- ANALYSIS: **Mains (10 marks)**: Why did the 2nd ARC recommend Parliamentary, rather than Lok Pal, scrutiny of the Prime Minister's conduct specifically?
- ANALYSIS: **Mains (15 marks)**: Evaluate the case for an "organic link" between the CVC and Lokpal in India's anti-corruption institutional architecture.

SESSION 10 - Study boundaries, reform synthesis and examiner-ready architecture

10. Study links

- FACT: Advanced companion: [advanced/20_Anti-Corruption-Institutions.md](#).
- FACT: [11_Accountability-and-Ethical-Governance.md](#) - the broader control-systems framework.
- FACT: [19_Corruption-Legal-Framework.md](#) - the legal framework these institutions enforce, and the full nine-step whistleblowing/ethical-dissent ladder.
- FACT: [21_Protecting-Honest-Officials-and-Vigilance-Administration.md](#) - the vigilance-screening step that precedes any CVC/Lokpal referral, and the POSH Act channel for harassment complaints.
- FACT: [Polity/advanced/37_CVC-and-CBI.md](#) and [Polity/advanced/38_Lokpal-and-Lokayuktas.md](#) - full constitutional/statutory-body detail.

BASIC MCQS / REMEDIATION

MCQ 1

A department treats an audit alert as conclusive guilt and dismisses an officer without hearing. Which institutional-design principle has been collapsed? Which source-grounded ethical principle most precisely explains the case?

- A. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- B. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- C. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: A

Explanation: Anti-corruption architecture is stage-separated is the controlling principle. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become

guilt. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 2

A credible complaint is screened, investigated by the competent agency, prosecuted through lawful process and decided by a court. Which architecture is being respected? Which source-grounded ethical principle most precisely explains the case?

- A. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- B. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- C. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- D. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.

Answer: B

Explanation: Anti-corruption architecture is stage-separated is the controlling principle. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 3

A Minister-official collusion complaint is repeatedly transferred among bodies until limitation and evidence risks grow. Which structural diagnosis best explains the failure? Which source-grounded ethical principle most precisely explains the case?

- A. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- B. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- C. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: C

Explanation: Multiplicity can create overlap without coherence is the controlling principle. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 4

A referral protocol names the lead body, evidence custodian, reporting deadline and next forum. Which response to institutional multiplicity is illustrated? Which source-grounded ethical principle most precisely explains the case?

- A. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- B. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- C. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- D. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.

Answer: D

Explanation: Multiplicity can create overlap without coherence is the controlling principle. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 5

A watchdog rejects all external review as interference and issues unexplained adverse findings. Which misconception about independence is present? Which source-grounded ethical principle most precisely explains the case?

- A. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- B. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- C. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: A

Explanation: Independence and accountability must coexist is the controlling principle. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 6

An agency has operational autonomy while publishing aggregate results, recording reasons and remaining subject to courts and audit. Which balanced principle is shown? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- B. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- C. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- D. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.

Answer: B

Explanation: Independence and accountability must coexist is the controlling principle. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 7

A complaint naming no transaction is publicised before verification, causing irreversible reputational harm. Which legitimacy safeguard was neglected? Which source-grounded ethical principle most precisely explains the case?

- A. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- B. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- C. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- D. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.

Answer: C

Explanation: Institutional design must protect public trust and due process is the controlling principle. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 8

A body preserves evidence confidentially, defines allegations and gives the affected person a lawful opportunity to respond. Which institutional ethic is applied? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- B. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- C. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: D

Explanation: Institutional design must protect public trust and due process is the controlling principle. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 9

A ministry states that CVC advice itself proves criminal guilt. Which role boundary corrects this claim? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- B. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- C. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: A

Explanation: CVC is advisory and superintending, not a trial court is the controlling principle. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 10

The Commission reviews vigilance handling while a competent court determines guilt after prosecution. Which institutional distinction is maintained? Which source-grounded ethical principle most precisely explains the case?

- A. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- B. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- C. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- D. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.

Answer: B

Explanation: CVC is advisory and superintending, not a trial court is the controlling principle. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 11

A candidate says the CVC directs all CBI work, including every unrelated special-crime case. Which statutory limitation has been missed? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- B. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- C. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: C

Explanation: CVC superintendence over CBI is subject-matter limited is the controlling principle. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 12

The Commission reviews progress in a corruption investigation but does not demand a predetermined outcome in a particular case. Which boundary is respected? Which source-grounded ethical principle most precisely explains the case?

- A. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- B. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- C. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- D. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.

Answer: D

Explanation: CVC superintendence over CBI is subject-matter limited is the controlling principle. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 13

A public enterprise mechanically punishes an employee because a vigilance opinion was received, without conducting the required proceeding. What has it displaced? Which source-grounded ethical principle most precisely explains the case?

- A. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- B. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- C. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: A

Explanation: CVC advice does not replace the disciplinary authority is the controlling principle. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 14

The disciplinary authority considers vigilance advice, records its own findings and follows the applicable procedure. Which allocation of responsibility is correct? Which source-grounded ethical principle most precisely explains the case?

- A. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- B. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- C. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- D. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.

Answer: B

Explanation: **CVC advice does not replace the disciplinary authority** is the controlling principle. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 15

A ministry asks its CVO to pronounce a criminal sentence after checking a procurement complaint. Which role inflation is involved? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- B. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- C. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- D. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.

Answer: C

Explanation: **A departmental CVO is the internal vigilance node** is the controlling principle. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 16

A CVO secures records, examines the vigilance angle and refers suspected criminality through the competent channel. Which departmental function is illustrated? Which source-grounded ethical principle most precisely explains the case?

- A. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- B. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- C. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: D

Explanation: A departmental CVO is the internal vigilance node is the controlling principle. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 17

An answer describes the CBI itself as a body created directly by the DSPE Act. Which precision correction is required? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- B. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- C. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: A

Explanation: CBI draws police powers from the DSPE Act is the controlling principle. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 18

An investigator identifies the DSPE Act as the source of police powers while separately noting the CBI's executive creation. Which distinction is correct? Which source-grounded ethical principle most precisely explains the case?

- A. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- B. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- C. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.
- D. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

Answer: B

Explanation: CBI draws police powers from the DSPE Act is the controlling principle. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 19

The Union executive directs a fresh CBI police investigation wholly within a State that has not consented. Which federal requirement arises? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- B. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- C. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: C

Explanation: State consent ordinarily controls DSPE extension is the controlling principle. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 20

A State grants case-specific consent after withdrawing general consent. What lawful route enables the CBI to exercise DSPE powers there? Which source-grounded ethical principle most precisely explains the case?

A. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.

B. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

C. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.

D. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

Answer: D

Explanation: State consent ordinarily controls DSPE extension is the controlling principle. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 21

A State argues that withdrawal of general consent prevents even a High Court from ordering a CBI probe. Which constitutional caveat answers the claim? Which source-grounded ethical principle most precisely explains the case?

A. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.

B. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.

C. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: A

Explanation: Constitutional courts form the consent caveat is the controlling principle. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 22

A High Court orders an exceptional CBI investigation after recording constitutional reasons. Why is ordinary executive consent analysis not decisive? Which source-grounded ethical principle most precisely explains the case?

- A. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- B. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- C. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.
- D. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.

Answer: B

Explanation: Constitutional courts form the consent caveat is the controlling principle. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 23

A press release calls an accused person guilty immediately after a charge sheet. Which investigation-adjudication distinction is violated? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- B. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- C. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.
- D. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.

Answer: C

Explanation: CBI investigation is not adjudication is the controlling principle. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 24

An agency presents tested evidence through prosecution while the court independently determines guilt. Which separation preserves legitimacy? Which source-grounded ethical principle most precisely explains the case?

A. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

B. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.

C. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.

D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: D

Explanation: CBI investigation is not adjudication is the controlling principle. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 25

A candidate attributes the enacted Chairperson-plus-eight-member structure directly to the ARC's three-member proposal. Which historical distinction is missing? Which source-grounded ethical principle most precisely explains the case?

A. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.

B. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.

C. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.

D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: A

Explanation: ARC's Lok Pal proposal and the enacted Lokpal differ is the controlling principle. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 26

An answer first states the 2007 recommendation and then separately explains the 2013 enacted design. Which source discipline is demonstrated? Which source-grounded ethical principle most precisely explains the case?

- A. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- B. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- C. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- D. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.

Answer: B

Explanation: ARC's Lok Pal proposal and the enacted Lokpal differ is the controlling principle. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 27

An option says every Lokpal Member must be a judge. Which composition rule makes it incorrect? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- B. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- C. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: C

Explanation: Enacted Lokpal combines judicial membership and representation is the controlling principle. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 28

A selection process must respect both the judicial-member floor and the statutory representation requirement. Which enacted design feature is involved? Which source-grounded ethical principle most precisely explains the case?

- A. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- B. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- C. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- D. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.

Answer: D

Explanation: Enacted Lokpal combines judicial membership and representation is the controlling principle. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 29

A statement claims Lokpal jurisdiction extends without qualification to every person and every public controversy in India. Which correction is required? Which source-grounded ethical principle most precisely explains the case?

- A. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- B. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- C. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: A

Explanation: Lokpal jurisdiction is broad but legally bounded is the controlling principle. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 30

A complaint is first tested against the office, subject matter, funding category and statutory conditions. Which jurisdictional discipline is being applied? Which source-grounded ethical principle most precisely explains the case?

- A. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- B. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- C. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- D. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.

Answer: B

Explanation: Lokpal jurisdiction is broad but legally bounded is the controlling principle. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 31

A complaint is within Lokpal jurisdiction, so an answer says the Lokpal itself must perform every evidence-gathering and trial function. Which design feature disproves this? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- B. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- C. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- D. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.

Answer: C

Explanation: Lokpal may use inquiry and investigating agencies is the controlling principle. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 32

Lokpal directs a referred investigation, reviews progress and later uses the lawful prosecution route. Which coordinated model is illustrated? Which source-grounded ethical principle most precisely explains the case?

- A. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- B. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- C. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: D

Explanation: Lokpal may use inquiry and investigating agencies is the controlling principle. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 33

An option says the Prime Minister is completely outside Lokpal jurisdiction. Which enacted compromise makes that option false? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- B. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- C. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: A

Explanation: Prime Minister jurisdiction is qualified, not absent is the controlling principle. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 34

A complaint concerning an unexcluded subject is considered by the full bench under the special threshold and in-camera process. Which qualified jurisdiction applies? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- B. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- C. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- D. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.

Answer: B

Explanation: Prime Minister jurisdiction is qualified, not absent is the controlling principle. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 35

A student says the ARC believed the Prime Minister should never be answerable. Which nuance corrects the interpretation? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- B. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- C. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: C

Explanation: ARC preferred Parliamentary scrutiny of a sitting Prime Minister is the controlling principle. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 36

An answer contrasts Parliamentary confidence accountability with the enacted qualified Lokpal route. Which institutional debate is accurately framed? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- B. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- C. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- D. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.

Answer: D

Explanation: ARC preferred Parliamentary scrutiny of a sitting Prime Minister is the controlling principle. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 37

An option assumes every State Lokayukta has the same composition and jurisdiction as Lokpal. Which federal fact defeats it? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- B. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- C. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: A

Explanation: Lokayukta design remains heterogeneous across States is the controlling principle. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 38

A reform compares State laws before proposing common minimum safeguards. Which heterogeneity is it addressing? Which source-grounded ethical principle most precisely explains the case?

- A. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- B. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- C. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- D. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.

Answer: B

Explanation: Lokayukta design remains heterogeneous across States is the controlling principle. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 39

A candidate copies the central Lokpal-CBI relationship onto every State without examining State law. Which institutional mistake occurs? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- B. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- C. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- D. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.

Answer: C

Explanation: State ACB and Lokayukta roles are not nationally uniform is the controlling principle. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 40

A State complaint is routed after checking the relevant Lokayukta Act and ACB police competence. Which precision rule is followed? Which source-grounded ethical principle most precisely explains the case?

- A. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- B. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- C. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: D

Explanation: State ACB and Lokayukta roles are not nationally uniform is the controlling principle. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 41

Separate bodies investigate the Minister and official without sharing the common transaction record. Which coordination failure follows? Which source-grounded ethical principle most precisely explains the case?

- A. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- B. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- C. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: A

Explanation: Minister-official collusion requires coordinated jurisdiction is the controlling principle. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 42

One forum preserves the complete allegation and assigns institution-specific tasks with deadlines. Which organic-link principle is being applied? Which source-grounded ethical principle most precisely explains the case?

- A. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- B. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- C. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- D. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.

Answer: B

Explanation: Minister-official collusion requires coordinated jurisdiction is the controlling principle. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 43

An answer claims the 2013 law made CVC, CVOs and CBI legally unnecessary. Which systems principle corrects it? Which source-grounded ethical principle most precisely explains the case?

- A. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- B. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- C. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: C

Explanation: An overarching body does not erase specialist bodies is the controlling principle. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 44

A reform keeps specialist capacity while establishing common referral and progress-review rules. Which institutional logic is shown? Which source-grounded ethical principle most precisely explains the case?

- A. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- B. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- C. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- D. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.

Answer: D

Explanation: An overarching body does not erase specialist bodies is the controlling principle. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 45

A report calls an institution fully effective merely because its statute exists. Which evaluation error has occurred? Which source-grounded ethical principle most precisely explains the case?

- A. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- B. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- C. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: A

Explanation: Performance cannot be inferred from legal existence is the controlling principle. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 46

An assessment separately measures timeliness, referral quality, investigation, prosecution and final outcomes. Which performance discipline is used? Which source-grounded ethical principle most precisely explains the case?

- A. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- B. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- C. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- D. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.

Answer: B

Explanation: Performance cannot be inferred from legal existence is the controlling principle. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 47

A proposal gives one watchdog exclusive power to investigate, prosecute and finally determine guilt. Which institutional risk does it create? Which source-grounded ethical principle most precisely explains the case?

- A. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- B. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- C. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- D. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.

Answer: C

Explanation: Reform should improve coherence without creating a mega-agency is the controlling principle. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 48

A protocol coordinates bodies but keeps courts and disciplinary authorities as independent decision forums. Which reform balance is achieved? Which source-grounded ethical principle most precisely explains the case?

A. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.

B. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.

C. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.

D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: D

Explanation: Reform should improve coherence without creating a mega-agency is the controlling principle. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

PYQS AND ANSWER PRACTICE

Solved PYQ 1 - 2019 - 10 marks

Question: GS-IV Q2(b): "Non-performance of duty by a public servant is a form of corruption". Do you agree with this view? Justify your answer. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 2. Topic 20 uses the institutional-routing dimension; detailed offence ingredients remain Topic 19-owned.

Model solution

I agree only when non-performance is a culpable misuse of entrusted office. An official who wilfully delays an entitlement to extract payment, suppresses a credible vigilance reference or protects a connected contractor can confer improper advantage through omission. The institutional response should begin by identifying the duty, authority, knowledge, motive, harm and records. A departmental CVO may examine whether a vigilance angle exists; suspected criminality can then reach the competent investigating agency, while the disciplinary authority and court retain their distinct decision roles.

However, every failure is not corruption. Staff shortage, conflicting instructions, genuine legal uncertainty or a bona fide decision that later performs poorly may indicate capacity failure or negligence. Stigmatising these as corruption would deter initiative and undermine fair process.

Thus non-performance becomes ethically corrupt when deliberate or recklessly indifferent omission uses public power for improper advantage or foreseeable public harm. Investigation must establish facts; legal liability depends on Topic 19's statutory ingredients, not on the slogan alone.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 2 - 2019 - 10 marks

Question: GS-IV Q5(a): What do you understand by probity in governance? Based on your understanding of the term, suggest measures for ensuring probity in government. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 3. Topic 14 owns the complete probity concept; Topic 20 supplies institution-specific enforcement and coordination.

Model solution

Probity is demonstrable rectitude in public power: legality, impartiality, integrity, transparency, reasoned discretion and answerability must be visible in decisions, not merely claimed as personal virtue. Institutions make probity credible. Departments need CVO-led preventive vigilance, conflict declarations, speaking records and safe complaint handling. The CVC should provide vigilance advice and exercise its specified superintendence without being described as a criminal court. CBI or State ACBs investigate within lawful jurisdiction; Lokpal or the relevant Lokayukta handles complaints within its enacted remit; courts adjudicate guilt.

The ARC's multiplicity diagnosis shows why these bodies need referral protocols, common record preservation and time-bound follow-up. Independence must be matched by reasons, aggregate reporting, audit and judicial review. Technology can preserve trails but cannot decide motive or guilt.

Probity therefore requires both ethical culture and stage-separated institutions. The best system makes wrongdoing difficult, detection credible, investigation competent and punishment lawful while protecting bona fide administration from allegation-based condemnation.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 3 - 2019 - 20 marks

Question: GS-IV Q12: India seeks effective civil-service ethics, codes of conduct, transparency measures, ethics and integrity systems and anti-corruption agencies. Suggest institutional measures for anticipating threats, strengthening ethical competence and developing processes that promote integrity. (250 words)

Source / ownership: Faithful condensed routing of the English demand verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 7. The official paper contains the complete enumerated stem. Topic 20 owns anti-corruption institutional coherence; Topics 15-16 own codes and Topic 21 owns honest-official safeguards.

Model solution

The demand has three linked levels. First, anticipate threats through department-wise integrity-risk maps covering procurement, licensing, inspection, transfers and grants. CVOs should analyse complaint, audit and disciplinary patterns, while leadership reviews concentration of discretion and repeated control failures. This is preventive vigilance, not a presumption of guilt.

Second, strengthen competence through scenario-based training on conflicts, written reasons, lawful directions, evidence preservation and institution choice. Officials should know that CVC advice, CBI investigation, Lokpal jurisdiction, disciplinary proceedings, prosecution and judicial adjudication are not interchangeable. Safe consultation and mentoring should precede crisis.

Third, build a coherent process. Complaints need triage, confidentiality, acknowledgement, jurisdiction checks and time-bound referral. The CVC-CVO network should connect preventive and departmental vigilance; CBI or State ACBs should investigate within federal limits; Lokpal or Lokayukta should exercise enacted ombudsman powers; competent prosecutors and courts should complete the consequence chain. Shared case identifiers and record protocols can prevent duplication without creating a mega-agency.

Independence requires secure tenure and resources, but also reasons, audit, legislative reporting and judicial review. The ARC's organic-link principle is useful: coordinate specialist institutions while preserving their autonomy. An integrity system succeeds when prevention, voice, competent investigation, fair adjudication and institutional learning reinforce one another.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 4 - 2021 - 15 marks

Question: GS-II Q11: The jurisdiction of the Central Bureau of Investigation (CBI) regarding lodging an FIR and conducting probe within a particular State is being questioned by various States. However, the power of the States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. (250 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-21-GENSTUDIESPAPER-II-110122.pdf, page 3. This GS-II overlap is Topic 20's direct federal-jurisdiction PYQ; detailed offence law remains outside scope.

Model solution

CBI's police powers arise through the Delhi Special Police Establishment Act, 1946. The Union may extend DSPE jurisdiction to a State, but ordinary exercise of those powers there requires State consent. Consent may be general or case-specific; withdrawal of general consent therefore requires fresh jurisdictional care for new investigations. This protects police as a State responsibility and prevents routine Union displacement of the State machinery.

The power is nevertheless not absolute. In *State of West Bengal v. Committee for Protection of Democratic Rights* (2010), the Supreme Court held that constitutional courts may order a CBI inquiry without State consent. The Supreme Court's Article 32 and High Courts' Article 226 powers protect fundamental rights and constitutional justice; ordinary legislation cannot disable them. Because such orders affect federal balance, courts should use the power sparingly and on recorded grounds.

The correct synthesis is cooperative federalism, not institutional supremacy. The Union cannot treat CBI as a general national police force free of the DSPE consent structure, while a State cannot convert consent into immunity from constitutional review. Clear consent records, prompt intergovernmental requests, judicial restraint and independent investigation preserve both federal autonomy and credible accountability.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 5 - 2021 - 10 marks

Question: GS-IV Q6(a): An independent and empowered social audit mechanism is an absolute must in every sphere of public service, including judiciary, to ensure performance, accountability and ethical conduct. Elaborate. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-21-GENSTUDIESPAPER-IV-110122.pdf, page 3. Social audit is mainly Topic 11/18 material; Topic 20 uses it as detection and referral, not adjudication.

Model solution

Social audit allows affected citizens to compare official records with lived delivery, exposing ghost beneficiaries, absent works, exclusion and local coercion. Its anti-corruption value is detection and voice: it can generate a documented complaint, preserve witness accounts and reveal patterns that a remote vigilance body may miss.

Its institutional boundary is equally important. A social-audit finding is not a conviction. Suspected departmental misconduct should reach the competent authority or CVO; criminal evidence should go to the lawful State ACB, CBI or other investigating body; a matter within Lokpal or Lokayukta jurisdiction should be referred there. Prosecution and adjudication require their own safeguards.

Independence needs access to usable records, facilitation separate from implementation, protection from retaliation, public hearings and action-taken reports. Application to the judiciary must respect decisional independence: administration and expenditure can be scrutinised, while merits of judgments follow appeal and review. Social audit strengthens the detection layer when it connects evidence to a competent, fair consequence chain.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 6 - 2022 - 10 marks

Question: GS-IV Q6(a): Whistle-blower, who reports corruption and illegal activities, wrongdoing and misconduct to the concerned authorities, runs the risk of being exposed to grave danger, physical harm and victimization by vested interests, accused persons and his team. What policy measures would you suggest to strengthen protection mechanism to safeguard the whistle-blower? (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-22-GENERAL-STUDIES-PAPER IV-190922.pdf, page 4. Topic 20 addresses authorised institutional channels; detailed whistleblower and honest-official protection belongs to Topics 19 and 21.

Model solution

Protection begins with a safe authorised channel, not merely a promise of secrecy. Complaints should receive secure intake, identity separation, restricted access, risk assessment, acknowledgement and time-bound jurisdictional routing. Central vigilance complaints within the PIDPI framework may reach the CVC; matters within Lokpal jurisdiction should follow its complaint process; suspected offences must reach the competent investigating agency. The recipient must not circulate identity casually among the accused chain.

Policy should prohibit retaliation, permit interim transfer or security support where risk is credible, preserve service benefits, penalise retaliators and provide independent review when the employer is implicated. Digital systems need access logs and breach accountability. Anonymous allegations may offer leads, but confidentiality should not be confused with anonymity under a formal protection mechanism.

Institutional separation protects both sides: a complaint triggers screening, not guilt; investigation tests evidence; prosecution and courts decide consequence. Detailed statutory status and safeguards belong to Topics 19 and 21. Topic 20's central lesson is that protection fails when the authorised channel cannot preserve identity, jurisdiction and follow-up.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 7 - 2022 - 20 marks

Question: Neutral routing of GS-IV Q10: an investigative journalist uncovers a stone-mining mafia linked with corrupt police, civil officials and a politically connected media owner, but faces inducement and pressure to suppress the report. Evaluate options, dilemmas and the appropriate response. (250 words)

Source / ownership: Neutral demand faithfully routed from books\more_previous_papers\QP-CSM-22-GENERAL-STUDIES-PAPER IV-190922.pdf, page 10. Topic 20 uses the multi-agency and State-institution dimension; Topic 22 owns full case-study method.

Model solution

The facts indicate networked corruption: illegal extraction, police protection, administrative facilitation, political influence and media ownership can disable ordinary complaint channels. The journalist should not accept the inducement or surrender the only evidence, but immediate sensational publication may expose sources and compromise investigation. He should authenticate records, preserve copies and chronology, obtain independent legal-editorial review and assess physical risk.

Institutionally, the route depends on jurisdiction. State police vigilance or the State ACB ordinarily investigates corruption within the State framework; the State Lokayukta may have a role defined by its own law. If local machinery is demonstrably compromised, judicial remedies or another lawfully competent forum may be necessary. CBI entry cannot be assumed without DSPE consent, case-specific authority or a constitutional-court direction. Lokpal is not a universal forum for State political corruption.

The response must also attack the network: secure witnesses, trace permits and money, review sensitive postings, reconcile transport and royalty data and separate investigation from political command. Publication, if used, should minimise unrelated personal data and protect sources. The case demonstrates why institutional independence, federal precision and multiple protected escalation routes are essential when the first-line agency is captured.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 8 - 2023 - 10 marks

Question: GS-IV Q2(a): "Corruption is the manifestation of the failure of core values in the society." In your opinion, what measures can be adopted to uplift the core values in the society? (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-23-GENERAL-STUDIES-PAPER-IV-180923.pdf, page 2. Values are Topic 1/2-owned; Topic 20 supplies the institutional complement to moral formation.

Model solution

Corruption reflects weakened honesty, fairness and public spirit, but values operate within incentives and institutions. Families, schools and public leaders should model respect for common resources, reject admiration of illicit wealth and teach that public office is a trust. Civil-service training should use real dilemmas involving conflict, pressure, reporting and reasoned refusal.

Moral education alone fails where wrongdoing is rewarded. CVO-led preventive vigilance, transparent criteria, CVC guidance, independent investigation, Lokpal or Lokayukta access within jurisdiction, protected complaints and fair courts make integrity practicable. The ARC's multiplicity diagnosis also requires coordinated referral, so citizens are not defeated by institutional buck-passing. Swift action must remain evidence-based; allegation-driven humiliation can itself corrode justice.

The durable strategy joins character with credible consequence. Institutions without values may become formalistic or captured, while values without institutions leave honest persons exposed. Core values rise when ethical conduct is socially respected, administratively feasible and supported by a coherent system that detects, investigates, adjudicates and learns.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 9 - 2023 - 10 marks

Question: GS-IV Q5(b): 'Probity is essential for an effective system of governance and socio-economic development.' Discuss. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-23-GENERAL-STUDIES-PAPER-IV-180923.pdf, page 4. Topic 14 owns the general concept; Topic 20 supplies the anti-corruption institutional mechanism.

Model solution

Probity makes public decisions lawful, impartial, transparent and demonstrably directed to public purpose. It improves development because citizens and firms can rely on fair rules, scarce resources reach intended uses and honest officials are not displaced by patronage. Yet probity cannot depend only on personal virtue.

Institutional support is stage-specific. Departmental CVOs reduce opportunity and examine vigilance concerns; the CVC advises and exercises specified superintendence; CBI or State ACBs investigate within lawful federal jurisdiction; Lokpal and State-specific Lokayuktas provide ombudsman routes; prosecutors present cases and courts adjudicate. Clear referrals and shared records address the ARC's warning about overlapping institutions. Reasons, hearing and review prevent vigilance from becoming arbitrary.

Probity therefore produces both ethical legitimacy and economic reliability. However, the existence of watchdogs does not prove effectiveness: staffing, independence, timeliness, coordination and follow-up must be verified. Development is best served when prevention, investigation and lawful consequence coexist with protection for bona fide decisions.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original Mains Practice 1 - 10 marks

Question: Differentiate the roles of the CVC, CBI and Lokpal in India's anti-corruption architecture. Answer in about 150 words.

Model solution

The three institutions occupy connected but distinct positions. The CVC is a statutory vigilance body. It advises the Union system, exercises superintendence over DSPE corruption investigations within its specified remit and reviews vigilance administration; it does not adjudicate criminal guilt. The CBI is an investigating agency whose police powers derive from the DSPE Act. It gathers evidence within lawful territorial jurisdiction, while prosecution and the court complete later stages.

Lokpal is the ombudsman created by the 2013 law for the Prime Minister subject to safeguards, Union Ministers, MPs, central officials and specified bodies. It may order preliminary inquiry and refer or direct investigation, including through CBI in appropriate cases. It complements rather than abolishes CVC and CBI.

The ARC's organic-link principle explains the relationship: political and administrative aspects of one transaction need coordinated handling, but advice, inquiry, investigation, prosecution and adjudication must not collapse. Role precision protects both effectiveness and due process.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 2 - 10 marks

Question: Why is State consent for CBI investigation important, and why is it not an absolute constitutional veto? Answer in about 150 words.

Model solution

State consent reflects India's federal distribution of police responsibility. Under the DSPE Act, extension of Delhi Special Police Establishment powers to a State ordinarily requires that State's consent. General consent enables a category of cases; after its withdrawal, fresh investigations need case-specific authority unless another lawful basis exists. The Union executive therefore cannot treat CBI as a general national police force.

Consent is not an absolute constitutional veto. In *State of West Bengal v. Committee for Protection of Democratic Rights* (2010), the Supreme Court held that the Supreme Court under Article 32 and High Courts under Article 226 may order a CBI investigation without State consent to enforce constitutional rights. That exceptional power should be used cautiously because routine use would weaken federal balance.

The synthesis is cooperative federalism: respect statutory consent in ordinary administration, permit reasoned constitutional intervention where justice requires it, and preserve investigation from both Union and State political control.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 3 - 15 marks

Question: Compare the Second ARC's 2007 Lok Pal proposal with the Lokpal enacted under the Lokpal and Lokayuktas Act, 2013. Answer in about 200 words.

Model solution

The ARC proposed a lean three-member Lok Pal: a serving or retired Supreme Court judge as Chair, an eminent jurist and the CVC ex officio. Its jurisdiction centred on Union Ministers and MPs. It excluded formal inquiry into a sitting Prime Minister, reasoning that Westminster government depends on the Prime Minister's Parliamentary confidence and that an inquiry could destabilise governance. It also envisaged an organic link in which CVC retained functional autonomy under the Lok Pal's overall guidance.

The 2013 Act enacted a different institution: a Chairperson and not more than eight Members, with at least half judicial Members and a statutory representation requirement. Jurisdiction extends to the Prime Minister subject to subject-matter exclusions, full-bench consideration, a two-thirds threshold and confidentiality; it also covers Ministers, MPs, central officials and specified funded bodies. Inquiry, investigation and prosecution mechanisms are correspondingly broader.

The difference reflects competing design values. ARC prioritised focus, judicial anchoring and continuity; the enacted model prioritised comprehensive coverage and representative legitimacy after later political mobilisation. Neither should be misquoted as the other. A strong answer treats the 2007 recommendation and 2013 law as related but separate historical facts.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 4 - 15 marks

Question: Assess whether the Lokpal and Lokayuktas Act resolved the multiplicity and coherence problem identified by the Second ARC. Answer in about 200 words.

Model solution

The Act improved coherence by creating an overarching central ombudsman with jurisdiction over high political functionaries, central officials and specified bodies. Lokpal can order preliminary inquiry, refer investigation and exercise direction over agencies in referred matters. This reduces the risk that a Minister-official collusion allegation is divided between political and bureaucratic silos. The later constitution of dedicated Inquiry and Prosecution Wings strengthens the visible stage architecture.

The ARC's problem is nevertheless only partly resolved. CVC, departmental CVOs, CBI, disciplinary authorities and courts retain distinct statutes and functions; coordination depends on practical referral, record-sharing and timelines. At State level, the central law required Lokayuktas but prescribed no uniform model. State Lokayukta and ACB powers therefore remain heterogeneous. More bodies can reproduce delay, forum shopping, evidence fragmentation or needless duplication if responsibility is unclear.

Reform should establish common case identifiers, lead-agency rules, protected evidence exchange, reasoned referrals and stage-wise public reporting while preserving due process and specialist autonomy. The goal is not one mega-agency. Coherence means connected responsibility across inquiry, investigation, prosecution and adjudication, not institutional merger.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 5 - 20 marks

Question: Design a coordinated anti-corruption process for a complaint alleging collusion between a Union Minister, senior officials and a private beneficiary. Answer in about 250 words.

Model solution

The complaint should enter through a secure channel with identity protection, transaction details and record-preservation instructions. Initial triage must test whether the allegation concerns corruption, which persons and bodies fall within Lokpal jurisdiction, whether departmental vigilance issues coexist and whether urgent steps are needed to prevent evidence loss. Publicity should not precede verification.

Lokpal can preserve the complete collusion allegation rather than fragmenting the Minister and officials. It may order preliminary inquiry through its Inquiry Wing or another competent agency. The departmental CVO can secure internal files and identify control failures; CVC can perform its statutory vigilance and specified superintendence roles. If full investigation is ordered through CBI, lawful evidence gathering, financial and decision trails, witness protection and technical expertise should follow. No body should direct a predetermined finding.

After investigation, prosecution must be handled through the legally competent route and adjudication left to the court. Departmental proceedings may address service responsibility under their own standard and safeguards without being confused with criminal conviction. Aggregate progress reporting should avoid prejudicing trial or exposing complainants.

System repair should continue alongside individual accountability: disclose conflicts, redesign the licensing or procurement process, separate sensitive roles, review beneficial ownership and close the control gap. The ARC's organic-link principle supplies the design thesis-one transaction, coordinated institutions, preserved functional autonomy. Effectiveness comes from clear lead responsibility, deadlines and evidence exchange; legitimacy comes from confidentiality, hearing, reasons, review and independent adjudication.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 6 - 20 marks

Question: Critically evaluate the qualified jurisdiction of Lokpal over the Prime Minister as an accountability-continuity compromise. Answer in about 250 words.

Model solution

The accountability case is strong: democratic office cannot become personal immunity, and excluding the highest executive office entirely could weaken equality before public standards. The 2013 Act therefore includes the Prime Minister. Yet it excludes allegations relating to international relations, external and internal security, public order, atomic energy and space. An inquiry requires full-bench consideration, approval by at least two-thirds of Members and in-camera proceedings; dismissal brings strict record confidentiality.

These safeguards answer part of the ARC's continuity concern. The ARC had argued that a formal inquiry could damage the Parliamentary-confidence-based authority on which Westminster government rests, even if the allegation later fails. The enacted model substitutes a high threshold and protected process for the ARC's exclusion, balancing answerability with protection against frivolous destabilisation.

The compromise remains imperfect. Subject-matter exclusions may shield mixed decisions where security and commercial considerations overlap. Conversely, even a confidential inquiry can create political paralysis if leaked. A high threshold may prevent harassment but can also make scrutiny unusually difficult. Parliamentary accountability, judicial review, electoral judgment and ordinary institutional checks therefore remain important.

The defensible verdict is qualified inclusion rather than either absolute exemption or routine inquiry. Periodic review should examine whether complaints are filtered by reasons rather than political convenience, whether confidentiality works and whether excluded subjects are construed narrowly. Accountability should remain publicly credible without allowing accusation alone to destabilise constitutional government or institutional trust.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Ethics | **Tier:** Advanced | **GS Paper:** GS-IV (with GS-II overlap). **Core area:** Deeper institutional-design analysis of CVC/CBI/Lokpal jurisdiction, ARC's 2007 proposal vs the enacted 2013 Lokpal, and unresolved ethics-institutional questions. **Grounded in:** 2nd ARC 4th Report *Ethics in Governance* (2007), Ch.4; Lokpal and Lokayuktas Act, 2013; audited GS-IV PYQs. **FACT:** = source-grounded | **ANALYSIS:** = inference/analysis | **CURRENT:** = current anchor. *Companion:* basic/20_Anti-Corruption-Institutions.md.

1. Architecture

ARC's 2007 LOK PAL PROPOSAL

3-member body:

- Chairman: serving/retired SC judge
- 1 eminent jurist
- CVC (ex-officio)

Jurisdiction: Ministers + MPs only (explicitly excludes formal PM enquiry - Parliament remains the PM's check)

Organic link to CVC: CVC works under Lok Pal's "overall guidance and superintendence" while retaining functional autonomy

LOKPAL AND LOKAYUKTAS ACT, 2013 (ENACTED)

Chairperson + not more than 8 Members

(>=50% judicial; >=50% from SC/ST/OBC, minorities and women)

Jurisdiction: PM (barred only for international relations, external and internal security, public order, atomic energy and space; 2/3 of Members must approve; in camera), Ministers, MPs, all central govt officials (Groups A-D), heads of govt-linked bodies, FCRA-funded bodies above Rs 10 lakh/year, and government-financed bodies above a notified amount

CVC/CBI continue to operate under their own statutes; Lokpal has powers to direct/supervise CBI investigation in referred cases and its own inquiry wing
States to set up Lokayuktas within one year of commencement (s.63), without a prescribed uniform model

Analytical claim: The gap between the ARC's lean, judiciary-anchored 2007 proposal and the larger, broader-jurisdiction 2013 enactment is itself a rich source of GS-IV analytical material - advanced answers should explain *why* the eventual design expanded scope (public/political pressure for comprehensive coverage, post-2011 anti-corruption movement context) while still incorporating the ARC's central organic-linkage and Prime-Minister-jurisdiction principles in modified form.

2. Concepts and distinctions

Concept	Precise meaning
FACT: ARC's Prime-Minister-jurisdiction argument, precisely stated	ARC 4.3.6-4.3.9 argues the Westminster-model Prime Minister, while formally "first among equals," has <i>practically</i> become the government's leader whose Parliamentary-confidence-based survival underpins the entire government's stability - subjecting the PM to formal Lok Pal enquiry (even on ultimately baseless charges) would itself, per the ARC, cripple governance during the enquiry period, an institutional-continuity harm distinct from any claim of legal immunity.
CURRENT: The 2013 Act's actual (qualified) PM jurisdiction	Unlike the ARC's blanket exclusion, the enacted Act brings the Prime Minister within Lokpal jurisdiction but bars any inquiry into allegations relating to "international relations, external and internal security, public order, atomic energy and space"; an inquiry may be initiated only if the full bench considers it and at least two-thirds of the Members approve, the proceedings are held in camera , and if the complaint is dismissed the records are neither published nor made available to anyone.
ANALYSIS: Judicial-anchoring vs broad-representation institutional design	ARC's judiciary-heavy 3-member design privileged perceived independence/legal rigor; the 2013 Act's larger composition - at least 50% judicial Members, and at least 50% from SC/ST/OBC, minorities and women - privileges legitimacy and inclusiveness: a genuine institutional-design trade-off between specialised independence and broad-based representative legitimacy.
ANALYSIS: NGO/substantially-funded-body jurisdiction	ARC 3.3 had recommended extending PC Act-type coverage to substantially government-funded NGOs (>50% of annual operating cost or ≥Rs 1 crore in the preceding 3 years). The 2013 Act's own thresholds differ and must be stated precisely: Section 14(1)(g) covers bodies/associations receiving foreign contribution under the FCRA, 2010 "in excess of ten lakh rupees in a year"; Section 14(1)(h) covers bodies wholly or partly financed by government whose annual income exceeds "such amount as the Central Government may, by notification, specify".
FACT: CBI State-consent rule and constitutional-court caveat	CBI was created by executive resolution, while DSPE police powers ordinarily require State consent for exercise within that State. Withdrawal of general consent changes the route for fresh cases but cannot disable the Supreme Court's Article 32 or High Courts' Article 226 power to direct a CBI investigation; this exceptional constitutional remedy is not a general Union-executive exception.

3. Detailed treatment

Why the enacted Lokpal differs from the ARC's proposal - political-economy reading

- ANALYSIS: The ARC's 2007 proposal was drafted in a period without the sustained, large-scale public mobilisation (the 2011 Anna Hazare-led movement and subsequent parliamentary negotiation) that eventually shaped the Lokpal and Lokayuktas Act, 2013's final, more expansive design - a useful illustration of how anti-corruption institutional design is not purely a technocratic exercise but is substantially shaped by contemporaneous political mobilisation and negotiation.
- ANALYSIS: The broader jurisdiction (all central government officials, not just Ministers/MPs) reflects a political demand for comprehensive coverage that the ARC's narrower, judiciary-anchored proposal did not itself advocate - illustrating a genuine difference in institutional philosophy: the ARC prioritised a lean, high-independence body for the *most* politically sensitive cases (Ministers/ MPs), while the eventual Act prioritised comprehensive coverage across the administrative hierarchy.

The qualified PM-jurisdiction compromise - evaluating its coherence

- ANALYSIS: The 2013 Act's approach (include the PM, but with specific subject-matter exclusions and a

higher procedural threshold for initiating inquiry) can be read as an attempt to honour both the "no functionary should be exempt" principle (which the ARC itself acknowledged as "technically correct," 4.3.9) and the ARC's own institutional-continuity concern (a formal enquiry, even if ultimately unfounded, damages governance) - by raising the threshold for triggering an enquiry rather than exempting the office altogether.

- ANALYSIS: Advanced critique: this compromise still leaves open the ARC's core worry - that *any* formal Lokpal enquiry into a sitting PM, however procedurally hedged, carries reputational/governance disruption risk before its outcome is known - suggesting the tension the ARC identified in 2007 has been narrowed by design (higher threshold, subject-matter exclusions) rather than fully resolved.

Organic linkage in practice - CVC, CBI and Lokpal coordination

- FACT: ARC 4.3.3's organic-linkage principle (CVC operating under Lok Pal's "overall guidance and superintendence" while retaining functional autonomy) anticipated a specific coordination design problem: without such linkage, a case involving both ministerial and bureaucratic collusion risks falling into a jurisdictional gap between separately operating institutions.

- CURRENT: The Lokpal and Lokayuktas Act, 2013 gives the Lokpal power to direct the CBI's investigation in referred cases and provides for its own inquiry and prosecution wings, operationalising a version of this organic-linkage principle. The existence of statutory powers does not itself prove operational effectiveness; staffing, referrals, reasons, timelines and outcomes require current official verification.

Multiplicity and coherence - an unresolved structural question

- FACT: ARC 4.2.5's core multiplicity critique (overlapping CVC/CBI/departamental-vigilance functions at the Union level; widely varying Lokayukta/State-Vigilance-Commission/Anti-Corruption-Bureau models across states) remains a substantially valid structural description even after the 2013 Lokpal Act, since that Act primarily addresses the *central* government level and high-level functionaries, leaving state-level institutional heterogeneity largely unresolved.

- ANALYSIS: Advanced point: Section 63 of the 2013 Act required every State to establish a Lokayukta within one year of commencement - i.e. by 16 January 2015 - but prescribed **no uniform structural model**, so composition, jurisdiction and independence safeguards still vary widely. A comprehensive institutional-coherence reform would need to standardise State Lokayukta design alongside the central Lokpal.

4. Institutional and reform architecture

- ANALYSIS: A coherent reform combining the ARC's organic-linkage principle with the 2013 Act's broader jurisdiction would: (1) develop common minimum State Lokayukta independence and due-process safeguards through cooperative federal consultation and State law; (2) strengthen formal CVC-CBI-Lokpal coordination protocols; (3) periodically review the PM- jurisdiction procedural threshold's practical operation to ensure it neither triggers frivolous enquiries nor becomes an unreviewable shield.

5. Indian applications and boundary cases

- ANALYSIS: A case alleging collusion between a central Minister and a senior bureaucrat over a licensing decision would, under the 2013 Act's design, fall within Lokpal jurisdiction for both individuals simultaneously - precisely the coordination scenario the ARC's organic-linkage principle anticipated, now operationalised through the Lokpal's CBI-direction power.

- ANALYSIS: Boundary case: an allegation against the sitting Prime Minister concerning a matter touching national security would trigger the 2013 Act's specific exclusion, redirecting accountability to Parliament - consistent with the ARC's own reasoning, even though the enacted safeguard differs procedurally from the ARC's blanket-exclusion proposal.

6. Limitations and trade-offs

- ANALYSIS: A broader-jurisdiction, larger-composition Lokpal (2013-style) risks slower, more procedurally complex functioning than the ARC's lean 3-member proposal, trading speed/focus for comprehensive coverage and representative legitimacy.
- ANALYSIS: The qualified PM-jurisdiction compromise, while more inclusive than the ARC's proposal, still carries some of the institutional-continuity risk the ARC identified, only partially mitigated by procedural thresholds and subject-matter exclusions.
- ANALYSIS: Persisting State-level Lokayukta heterogeneity means the ARC's 2007 "multiplicity and lack of coherence" critique remains substantially valid at the sub-national level even after national-level Lokpal reform.

7. Must-Know Facts for Advanced Prelims

- FACT: ARC's 2007 Lok Pal proposal was a lean, 3-member, judiciary-anchored body limited to Ministers and MPs, explicitly excluding formal PM enquiry in favour of Parliamentary accountability.
- CURRENT: The Lokpal and Lokayuktas Act, 2013 (assent 1 January 2014; in force 16 January 2014) established a Chairperson plus not more than eight Members, at least half judicial and at least half from SC/ST/OBC, minorities and women, covering the PM (with the five subject-matter exclusions and a two-thirds-of-Members threshold), Ministers, MPs and all central government officials. The first Chairperson was appointed on 19 March 2019; verify current membership from the official Lokpal portal on the day of use.
- FACT: ARC 4.2.5's "multiplicity of institutions with overlapping functions" critique specifically targeted the lack of coordination between CVC, departmental vigilance, CBI (Union level) and the varying Lokayukta/Vigilance-Commission/Anti-Corruption-Bureau models (State level).

8. Advanced Prelims traps

- WRONG: The Lokpal and Lokayuktas Act, 2013 excludes the Prime Minister from its jurisdiction entirely, exactly as the ARC recommended. -> The 2013 Act includes the PM subject to specific, qualified exclusions and a higher procedural threshold - a compromise design, not the ARC's blanket exclusion.
- WRONG: The ARC's 2007 Lok Pal proposal and the enacted 2013 Lokpal are essentially identical in composition. -> They differ materially: a lean, judiciary-anchored 3-member ARC proposal vs a larger, socially representative, broader-jurisdiction 2013 institution.
- WRONG: State-level anti-corruption institutional multiplicity has been fully resolved by the 2013 Lokpal Act. -> The Act primarily addresses the central-government level; State Lokayukta heterogeneity, per the ARC's original 4.2.5 diagnosis, remains only partially addressed.
- WRONG: Withdrawal of general State consent removes the constitutional courts' power to order a CBI investigation. -> The DSPE consent rule binds the ordinary executive route; Supreme Court and High Court directions under Articles 32 and 226 remain an exceptional constitutional caveat.

9. Current application

Current application (verify before use)	Topic-specific analytical use
CURRENT: Lokpal Circular No. 01/2026 dated 24 July 2026 sets procedures concerning complaints, listing of matters, uploading of orders and Section 14 jurisdiction	Use as a procedural-transparency anchor without treating listing or an uploaded order as proof of guilt.
CURRENT: Official Financial Year 2025-26 data record 558 complaints received, 431 registered, 407 registered complaints disposed, 81 preliminary inquiries, 8 investigations, 0 prosecution sanctions, 2 disciplinary directions and 99 pending complaints	Preserve the report's category labels. These administrative counts are not automatically one cohort and do not by themselves prove corruption prevalence or institutional effectiveness.

10. PYQ-based analytical application

- ANALYSIS: Any question on "institutional reforms for combating corruption" should explicitly distinguish the ARC's 2007 proposal from the 2013 enacted Lokpal, showing awareness of both the recommendation and its eventual, differently shaped implementation.
- ANALYSIS: Questions on "accountability of the highest constitutional functionaries" should present both sides of the ARC's own PM-jurisdiction debate (4.3.5-4.3.10) rather than asserting a single, one-sided position.

11. Mains-ready framework

Central thesis: India's anti-corruption institutional architecture evolved from the ARC's lean, judiciary-anchored 2007 Lok Pal proposal to a larger, broader-jurisdiction 2013 Lokpal shaped by subsequent political mobilisation; the PM-jurisdiction question remains a genuine institutional- continuity vs accountability trade-off, only partially resolved by procedural compromise, while State-level institutional multiplicity remains a substantially unresolved structural gap.

1. State the ARC's 2007 institutional-design proposal precisely (composition, jurisdiction, PM exclusion rationale).
2. Contrast it with the 2013 Act's actual, broader design and qualified PM-jurisdiction compromise.
3. Explain the political-economy reason for the difference (post-2011 mobilisation, comprehensive-coverage demand).
4. Assess the trade-offs of each design (lean/independent vs broad/representative; PM-jurisdiction continuity risk vs accountability).
5. Recommend a specific, coherence-improving reform (common minimum State safeguards through State law, CVC-CBI-Lokpal referral protocols, secure records and stage-wise reporting).

12. Probable questions

- ANALYSIS: **Prelims:** How does the ARC's 2007 Lok Pal proposal's composition differ from the Lokpal and Lokayuktas Act, 2013's enacted structure?
- ANALYSIS: **Mains (10 marks):** Evaluate the ARC's argument that a sitting Prime Minister should be accountable to Parliament rather than to a formal Lok Pal enquiry.
- ANALYSIS: **Mains (15 marks):** Assess whether India's anti-corruption institutional architecture has resolved the "multiplicity and lack of coherence" problem identified by the 2nd ARC in 2007.

13. Study links

- FACT: Foundation companion: `basic/20_Anti-Corruption-Institutions.md`.
- FACT: `11_Accountability-and-Ethical-Governance.md` - the broader control-systems framework.
- FACT: `21_Protecting-Honest-Officials-and-Vigilance-Administration.md` - honest-official-protection design tension shared with the Section 17A/19 discussion.
- FACT: `Polity/advanced/37_CVC-and-CBI.md` and `Polity/advanced/38_Lokpal-and-Lokayuktas.md` - full constitutional/statutory-body detail.

CONSOLIDATED REGISTER NOTES

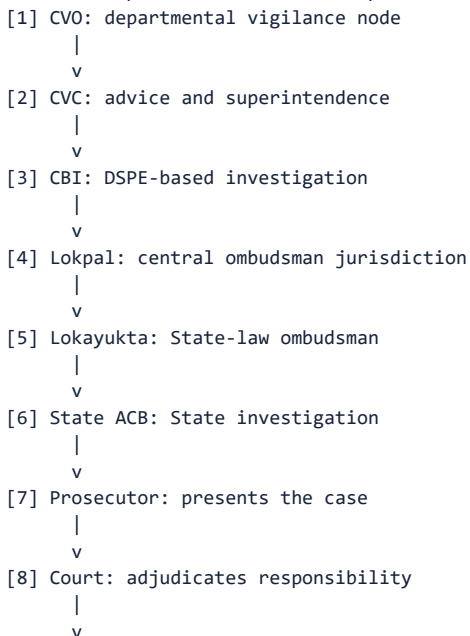
EMBEDDED TWELVE-PANEL ASCII REVISION ATLAS

The panels compress the learning route without replacing the complete teaching and solved practice above.

ASCII PANEL 1/12 - 1. Anti-corruption institutional map

CENTRAL FOCUS

1. Anti-corruption institutional map



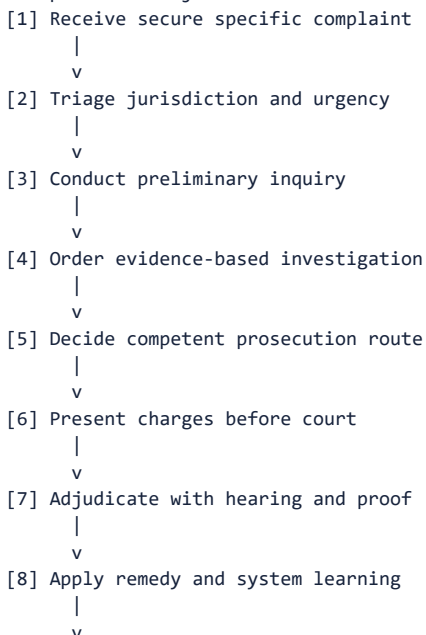
VERDICT -> Institutional plurality works only when each role and hand-off is explicit.

ANSWER USE -> Use as the opening visual in any architecture answer.

ASCII PANEL 2/12 - 2. Complaint-to-adjudication chain

CENTRAL FOCUS

2. Complaint-to-adjudication chain



VERDICT -> A complaint initiates process; it never proves guilt.

ANSWER USE -> Use to separate inquiry, investigation, prosecution and adjudication.

ASCII PANEL 3/12 - 3. CVC role boundary

CENTRAL FOCUS

3. CVC role boundary

```
[1] Statutory body under 2003 Act
    |
    v
[2] Origins in 1964 resolution
    |
    v
[3] Advises Union vigilance system
    |
    v
[4] Superintends specified DSPE work
    |
    v
[5] Reviews investigation progress
    |
    v
[6] Oversees vigilance administration
    |
    v
[7] Works through departmental CVOs
    |
    v
[8] Does not criminally convict
    |
    v
VERDICT -> CVC strengthens vigilance coherence without becoming investigator, prosecutor and
          court.
ANSWER USE -> Use for close-option role questions.
```

ASCII PANEL 4/12 - 4. CBI federal-jurisdiction route

CENTRAL FOCUS

4. CBI federal-jurisdiction route

```
[1] CBI created by executive resolution
    |
    v
[2] Police powers derive from DSPE Act
    |
    v
[3] Union extends DSPE jurisdiction
    |
    v
[4] State consent ordinarily required
    |
    v
[5] General or case-specific consent
    |
    v
[6] Constitutional courts may direct
    |
    v
[7] Exceptional power used cautiously
    |
    v
[8] Court still adjudicates final guilt
    |
    v
VERDICT -> State consent is the ordinary rule; constitutional-court direction is the caveat.
ANSWER USE -> Use for the 2021 GS-II CBI PYQ.
```

ASCII PANEL 5/12 - 5. Enacted Lokpal design

CENTRAL FOCUS

5. Enacted Lokpal design

- [1] Chairperson plus up to eight Members
 - ↓
- [2] At least half judicial Members
 - ↓
- [3] Statutory representation requirement
 - ↓
- [4] Covers Ministers and MPs
 - ↓
- [5] Covers central officials A to D
 - ↓
- [6] Qualified Prime Minister coverage
 - ↓
- [7] Specified funded bodies included
 - ↓
- [8] Inquiry and referral powers coexist
 - ↓

VERDICT -> The 2013 Lokpal is broader than the ARC's proposed three-member body.

ANSWER USE -> Use for composition and jurisdiction answers.

ASCII PANEL 6/12 - 6. ARC proposal versus enacted law

CENTRAL FOCUS

6. ARC proposal versus enacted law

- [1] ARC year: 2007 recommendation
 - ↓
- [2] ARC body: three members
 - ↓
- [3] ARC remit: Ministers and MPs
 - ↓
- [4] ARC PM route: Parliament
 - ↓
- [5] Act year: 2013 enactment
 - ↓
- [6] Act body: Chair plus up to eight
 - ↓
- [7] Act remit: broader central coverage
 - ↓
- [8] Act PM route: qualified inclusion
 - ↓

VERDICT -> Recommendation and enactment are related developments, not identical designs.

ANSWER USE -> Use to avoid the most common historical trap.

ASCII PANEL 7/12 - 7. Prime Minister jurisdiction compromise

CENTRAL FOCUS

7. Prime Minister jurisdiction compromise

- [1] Democratic answerability supports inclusion
 - |
 - v
- [2] Continuity concern supports safeguards
 - |
 - v
- [3] Five sensitive subjects excluded
 - |
 - v
- [4] Full bench considers initiation
 - |
 - v
- [5] Two-thirds approval is required
 - |
 - v
- [6] Proceedings remain in camera
 - |
 - v
- [7] Dismissed records stay confidential
 - |
 - v
- [8] Parliamentary accountability also remains
 - |
 - v

VERDICT -> Qualified inclusion balances scrutiny with constitutional stability but resolves neither concern completely.

ANSWER USE -> Use for a balanced 15- or 20-mark evaluation.

ASCII PANEL 8/12 - 8. State-level institutional diversity

CENTRAL FOCUS

8. State-level institutional diversity

- [1] Central Act requires Lokayuktas
 - |
 - v
- [2] No single model is prescribed
 - |
 - v
- [3] State laws define composition
 - |
 - v
- [4] State laws define jurisdiction
 - |
 - v
- [5] State laws define investigative powers
 - |
 - v
- [6] ACBs perform State police roles
 - |
 - v
- [7] CVOs remain departmental nodes
 - |
 - v
- [8] Common safeguards need local adaptation
 - |
 - v

VERDICT -> Never copy the central Lokpal-CBI model mechanically onto every State.

ANSWER USE -> Use for federalism and Lokayukta reform.

ASCII PANEL 9/12 - 9. Organic linkage for collusion cases

CENTRAL FOCUS

9. Organic linkage for collusion cases

- [1] Preserve one common transaction record
 - |
 - v
- [2] Lokpal holds political-official allegation
 - |
 - v
- [3] CVO secures departmental evidence
 - |
 - v
- [4] CVC performs statutory vigilance role
 - |
 - v
- [5] CBI gathers criminal evidence lawfully
 - |
 - v
- [6] Prosecutor tests trial readiness
 - |
 - v
- [7] Court determines criminal responsibility
 - |
 - v
- [8] Departments repair enabling controls
 - |
 - v

VERDICT -> Coordination should connect specialist roles without merging them.

ANSWER USE -> Use for Minister-bureaucrat collusion analysis.

ASCII PANEL 10/12 - 10. Institutional quality test

CENTRAL FOCUS

10. Institutional quality test

- [1] Jurisdiction is clear
 - |
 - v
- [2] Appointments protect independence
 - |
 - v
- [3] Resources match workload
 - |
 - v
- [4] Referrals have deadlines
 - |
 - v
- [5] Evidence exchange is secure
 - |
 - v
- [6] Findings contain reasons
 - |
 - v
- [7] Review preserves due process
 - |
 - v
- [8] Outcomes feed system learning
 - |
 - v

VERDICT -> Legal existence is only the first milestone of institutional effectiveness.

ANSWER USE -> Use for reform and performance questions.

ASCII PANEL 11/12 - 11. Examiner trap board

CENTRAL FOCUS

11. Examiner trap board

- [1] CVC advice is not conviction
|
v
- [2] CBI name is not DSPE creation
|
v
- [3] Consent rule has court caveat
|
v
- [4] Lokpal does not replace CBI
|
v
- [5] ARC proposal is not 2013 design
|
v
- [6] PM coverage is qualified
|
v
- [7] Lokayuktas are not uniform
|
v
- [8] Inquiry finding is not adjudication
|
v

VERDICT -> Most marks are lost by inflating one institution into the whole system.

ANSWER USE -> Use for Prelims elimination and Mains precision.

ASCII PANEL 12/12 - 12. Examiner-ready answer spine

CENTRAL FOCUS

12. Examiner-ready answer spine

- [1] Define the institutional problem
|
v
- [2] Map each body's lawful role
|
v
- [3] State the federal or jurisdiction gate
|
v
- [4] Separate all accountability stages
|
v
- [5] Use ARC and enacted-law contrast
|
v
- [6] Add independence and due process
|
v
- [7] Recommend coordination without merger
|
v
- [8] Conclude with qualified coherence
|
v

VERDICT -> Precise role plus hand-off plus safeguard produces a high-quality institutional answer.

ANSWER USE -> Use to structure 10-, 15- and 20-mark responses.

ONE-PAGE CONCEPT GRID

Concept / thinker	Exam-ready formulation
Anti-corruption architecture is stage-separated	Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
Multiplicity can create overlap without coherence	The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
Independence and accountability must coexist	An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
Institutional design must protect public trust and due process	Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
CVC is advisory and superintending, not a trial court	The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
CVC superintendence over CBI is subject-matter limited	CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
CVC advice does not replace the disciplinary authority	Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
A departmental CVO is the internal vigilance node	A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
CBI draws police powers from the DSPE Act	The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
State consent ordinarily controls DSPE extension	The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
Constitutional courts form the consent caveat	State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
CBI investigation is not adjudication	CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

CORE REVISION SPINE

- **ARC's Lok Pal proposal and the enacted Lokpal differ:** The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- **Enacted Lokpal combines judicial membership and representation:** The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- **Lokpal jurisdiction is broad but legally bounded:** The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- **Lokpal may use inquiry and investigating agencies:** Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- **Prime Minister jurisdiction is qualified, not absent:** The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- **ARC preferred Parliamentary scrutiny of a sitting Prime Minister:** The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- **Lokayukta design remains heterogeneous across States:** The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- **State ACB and Lokayukta roles are not nationally uniform:** A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- **Minister-official collusion requires coordinated jurisdiction:** A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- **An overarching body does not erase specialist bodies:** Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- **Performance cannot be inferred from legal existence:** Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- **Reform should improve coherence without creating a mega-agency:** A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

SOURCE AND ATTRIBUTION DISCIPLINE

Topic 20 owns the ethics and jurisdiction architecture of CVC, CBI, Lokpal, State Lokayuktas, departmental CVOs and State Anti-Corruption Bureaus. The CVC is an advisory and superintending vigilance body within its statutory remit; CVC advice is not a criminal conviction, and the Commission is not a criminal court and its superintendence does not extend to every CBI subject. The CBI was created by executive resolution, while its police powers derive from the Delhi Special Police Establishment Act, 1946. State consent is the ordinary gate for exercising DSPE powers within a State, but withdrawal of general consent does not disable constitutional courts; Supreme Court Article 32 and High Court Article 226 directions are the constitutional-court caveat, not a general executive bypass. The ARC's 2007 three-member Lok Pal proposal must remain separate from the broader Lokpal enacted in 2013. The enacted Prime Minister jurisdiction is qualified by subject exclusions, full-bench consideration, a two-thirds threshold and confidentiality. State Lokayuktas are heterogeneous because the central law did not prescribe a uniform model; exact State Lokayukta and ACB powers require the relevant State law. Departmental CVOs perform preventive,

complaint-examination and disciplinary-routing functions; they do not adjudicate criminal guilt. Inquiry, investigation, prosecution, departmental decision and judicial adjudication must be written as distinct stages. Topic 19 owns detailed corruption offences, ingredients, sanction and allied criminal law. Topic 18 owns detailed public-fund, procurement, audit and leakage controls. Topic 21 owns safeguards for honest officials, vigilance screening and anti-retaliation design. Topic 22 owns complete case-study method. Official local UPSC PDFs control PYQ wording; condensed case entries are neutral routing and do not pretend to reproduce every printed fact. The official India Code PDFs of the DSPE Act, 1946 and the Lokpal and Lokayuktas Act, 2013 control statutory wording; institutional portal summaries cannot enlarge those enactments. The State-consent constitutional-court caveat follows the Constitution Bench judgment in *State of West Bengal v. Committee for Protection of Democratic Rights*, available through the Supreme Court's official judgment PDF; it is not a general Union-executive exception.

ANSWER SPINE

1. Define the precise ethical concept or teaching.
2. State a qualified thesis rather than a moral slogan.
3. Explain the causal or decision-making mechanism.
4. Add one specific Indian administrative illustration.
5. Test the strongest limitation or attribution caveat.
6. End with a practical, institution-aware verdict.

ANTI-CORRUPTION INSTITUTIONS RAPID REGISTER

1. INSTITUTIONAL STARTING POINT

- No single institution owns the whole anti-corruption chain.
- Core sequence: secure complaint -> jurisdiction triage -> preliminary inquiry -> investigation -> prosecution -> adjudication -> remedy/system repair.
- Complaint, audit flag or preliminary finding is not guilt.
- ARC 4.2.5 diagnosed multiplicity, overlap and lack of unified focus at Union and State levels.
- Reform requires lead responsibility, referral deadlines, secure common records and stage-wise follow-up, not automatic institutional merger.

2. CVC - PRECISE ROLE

- Established by executive resolution in 1964 following the Santhanam Committee; statutory under the CVC Act, 2003.
- Advises the Union system on vigilance and integrity administration.
- Exercises statutory superintendence over DSPE investigation of PC Act offences and connected trial offences.
- Reviews progress of covered investigations and vigilance matters.
- Cannot require an investigating agency to decide a particular case in a predetermined manner.
- Is not itself the criminal court, and vigilance advice does not replace the competent disciplinary authority's procedure and reasons.
- *Vineet Narain v. Union of India* supplied the independence context for statutory strengthening.

3. CVO - DEPARTMENTAL NODE

- Heads or coordinates vigilance work inside a ministry, department, public enterprise or organisation.
- Preventive role: risk review, systems examination, complaint pattern and control improvement.
- Reactive role: secure records, examine vigilance angle, support preliminary fact gathering and disciplinary routing.
- Interfaces with CVC where the statutory/administrative framework requires it.
- Does not become an independent police force, prosecutor or court.
- Topic 21 owns detailed safeguards against malicious or overbroad vigilance action.

4. CBI AND THE DSPE ACT

- CBI was created by executive resolution; DSPE Act, 1946 supplies its police powers.

- The Anti-Corruption Division investigates corruption cases within lawful subject and territorial jurisdiction.
- Investigation gathers and tests evidence; a charge sheet remains an accusation until adjudication.
- Prosecutors may present the case, but the competent court determines criminal responsibility.
- Do not say CBI is a constitutional body or that the DSPE Act itself created the institutional name CBI.

5. STATE CONSENT AND THE COURT CAVEAT

- DSPE jurisdiction may be extended to a State, but ordinary exercise of police powers there requires State consent.
- Consent may be general or case-specific; withdrawal of general consent changes the route for fresh cases.
- Union executive convenience is not a substitute for statutory consent.
- *State of West Bengal v. Committee for Protection of Democratic Rights* (2010): Supreme Court under Article 32 and High Courts under Article 226 may order CBI investigation without State consent.
- Constitutional-court power is exceptional and should be used cautiously because federal balance remains important.
- Best thesis: ordinary consent rule + exceptional constitutional remedy = cooperative federal accountability.

6. ARC'S 2007 LOK PAL PROPOSAL

- Three members: serving/retired Supreme Court judge as Chair, eminent jurist and CVC ex officio.
- Jurisdiction centred on Union Ministers and MPs.
- ARC excluded formal inquiry into a sitting Prime Minister and relied on Parliamentary-confidence accountability.
- Rationale was continuity of Westminster government, not personal moral immunity.
- Proposed organic link: CVC under Lok Pal's overall guidance/superintendence while retaining functional autonomy.
- Always label this as a 2007 recommendation, not the enacted institutional structure.

7. LOKPAL AS ENACTED IN 2013

- Chairperson plus not more than eight Members.
- At least 50% of Members judicial; at least 50% of Members from SC/ST/OBC, minorities and women.
- Covers Union Ministers, MPs, Groups A-D central officials and specified financed/foreign-contribution bodies.
- Parliament speech/vote protection and other statutory limits must not be ignored.
- Can order preliminary inquiry and refer/direct investigation through competent agencies.
- The Act came into force on 16 January 2014; the first Chairperson was appointed only in March 2019, illustrating the enactment-to-operation gap.
- Lokpal Circular No. 01/2026 dated 24 July 2026 sets procedure for complaints, listing, uploading orders and Section 14 jurisdiction.
- Official Financial Year 2025-26 administrative data: complaints received 558 (154 post/hand, 404 online); registered 431; registered complaints disposed 407; preliminary inquiries 81; investigations 8; prosecution sanctions 0; disciplinary directions 2; pending 99.
- Preserve those category labels: the counts are neither a measure of corruption prevalence nor proof of institutional success, and they are not automatically one continuous cohort.
- Lokpal complements CVC/CBI; it does not adjudicate criminal guilt.

8. PRIME MINISTER JURISDICTION

- Enacted law includes the Prime Minister subject to special safeguards.
- Excluded subjects: international relations, external security, internal security, public order, atomic energy and space.
- Full bench considers initiation; at least two-thirds of Members must approve.
- Proceedings are in camera; dismissed complaint records remain confidential under the special rule.
- Contrast: ARC proposed Parliamentary scrutiny instead of formal Lok Pal inquiry.
- Analytical tension: equality and answerability versus continuity and protection from frivolous destabilisation.

9. LOKAYUKTA AND STATE ACB

- The 2013 central law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform model.
- Composition, jurisdiction, powers, appointment design and independence vary under State laws.
- State ACB ordinarily performs State police investigation of corruption matters under the applicable framework.
- Never assume the central Lokpal-CBI relationship automatically applies to every State.
- State reform should seek common minimum safeguards while respecting federal legislative design.

10. COORDINATION WITHOUT ROLE COLLAPSE

- Minister-official-private beneficiary collusion should be preserved as one transaction narrative.
- Lokpal: jurisdiction and overarching handling of covered persons.
- CVO: departmental records and vigilance angle.
- CVC: advice, vigilance administration and specified DSPE superintendence.
- CBI/State ACB: evidence-gathering investigation within lawful remit.
- Prosecutor: presents legally sustainable charges.
- Court/disciplinary authority: determines responsibility under the applicable process.
- Shared records and deadlines should connect the bodies; no preliminary actor should become final judge.

11. PYQ AND PRELIMS ROUTES

- **2019 non-performance:** agree conditionally; route wilful omission through specific vigilance and evidence tests.
- **2019 probity:** connect ethical rectitude with CVO-CVC-investigation-court architecture.
- **2019 institutional measures:** risk mapping + competence + stage-separated enforcement.
- **2021 GS-II CBI:** DSPE consent rule + *CPDR* constitutional-court caveat + federal balance.
- **2021 social audit:** detection and citizen evidence, never conviction.
- **2022 whistleblower:** secure authorised channel, jurisdiction, confidentiality and anti-retaliation cross-link.
- **2022 mining mafia:** check State law, ACB/Lokayukta competence, capture and lawful escalation.
- **2023 corruption values:** institutions make values practicable; values keep institutions legitimate.
- Prelims traps: CVC does not control every CBI case; ARC proposal is not enacted Lokpal; PM is not wholly excluded; Lokayuktas are not uniform.

12. ANSWER-WRITING SPINE - ROLE, GATE, HAND-OFF

1. **Problem:** identify overlap, capture, federal consent, high-office scrutiny or stage collapse.
2. **Role map:** state exactly what CVO, CVC, CBI/ACB, Lokpal/Lokayukta, prosecutor and court do.
3. **Gate:** add jurisdiction, State consent, subject exclusion or State-law variation.
4. **Hand-off:** show complaint -> inquiry -> investigation -> prosecution -> adjudication.
5. **Evidence:** use Santhanam/1964, *Vineet Narain*, ARC 4.2.5/4.3.3, 2013 Act and *CPDR* where relevant.
6. **Balance:** combine independence with reasons, confidentiality, hearing, review and reporting.
7. **Reform:** common identifiers, referral deadlines, secure evidence exchange and stage-wise metrics without a mega-agency.
8. **Conclusion:** coherent institutions protect public trust only when specialist autonomy and lawful accountability reinforce each other.

Final thesis: India's anti-corruption architecture should be understood as a chain of specialised institutions, not a contest for one all-powerful watchdog. CVC advice and superintendence, CVO departmental vigilance, CBI or ACB investigation, Lokpal or Lokayukta ombudsman jurisdiction, competent prosecution and independent adjudication become effective only through precise jurisdiction, secure hand-offs, federal respect, due process and verified follow-up.